

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF QUEENS

----- X  
CORY D. NELSON,

SUMMONS

Plaintiff, Index No.:

-against-

The Basis of Venue is:  
Location of Incident

THE CITY OF NEW YORK, POLICE OFFICER  
OSWALDO RIVERA, TAX REG. NO. 946168 and  
POLICE OFFICERS JOHN AND JANE DOES  
NUMBERS 1-10,

Plaintiff designates Queens  
County as the place of trial.

Defendants.  
----- X

To the above named Defendants:

**You are hereby summoned** to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: Brooklyn, New York  
December 11, 2019

Yours, etc.



BROWN & CHESSA LLP  
MICHAEL CHESSA, ESQ.  
Attorney for Plaintiff  
26 Court Street, Suite 1406  
Brooklyn, New York 11242  
(718)-596-0025

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007  
POLICE OFFICER OSWALDO RIVERA, TAX REG No. 946168, 113th  
Precinct, 167-02 Baisley Blvd, Jamaica, NY 11434

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF QUEENS

----- X  
CORY D. NELSON,

Index No.:

Plaintiff,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, POLICE OFFICER  
OSWALDO RIVERA, TAX REG. NO. 946168 and  
POLICE OFFICERS JOHN AND JANE DOES  
NUMBERS 1-10,

**JURY TRIAL DEMANDED**

Defendants.  
----- X

Plaintiff Cory D. Nelson, by his attorneys, Brown & Chessa LLP, as and for his Verified Complaint herein, alleges upon information and belief as follows:

**PRELIMINARY STATEMENT**

1. This is a civil rights action to recover money damages arising out of Defendants' violation of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On December 9, 2016, at approximately 1:00 a.m., Plaintiff Cory D. Nelson, while lawfully in the vicinity of 167-02 Baisley Boulevard, Jamaica, New York, was subject to an unlawful stop, question, frisk, search, false arrest, and false imprisonment by the Defendant New York City police officers. Plaintiff was then unlawfully imprisoned at the 113th Precinct and Queens Central Booking for approximately 24 hours until Plaintiff was arraigned in Criminal Court and charged with crimes he did not commit. He was then incarcerated for 46 days at Rikers Correctional Center until he was released on bond, January 24, 2017. Plaintiff was denied the right to due process and a fair trial until the Obstructing Governmental Administration charges and other charges against Plaintiff were dismissed in November, 2018. Plaintiff was deprived of his constitutional and common law rights when the individual Defendants unlawfully stopped, questioned, frisked, searched, confined, falsely arrested, falsely imprisoned and denied Plaintiff the right to due process and a fair trial in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

**PARTIES**

2. Plaintiff Cory D. Nelson is a resident of the state of New York.
3. POLICE OFFICER OSWALDO RIVERA, Tax Reg No. 946168, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
4. POLICE OFFICER OSWALDO RIVERA, Tax Reg No. 946168, was at all times relevant herein, assigned to the 45<sup>th</sup> Precinct.
5. POLICE OFFICER OSWALDO RIVERA, Tax Reg No. 946168, is being sued in his individual and official capacity.
6. New York City Police Officers John and Jane Does #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.
7. Police Officers John and Jane Does #1-10 are being sued in their individual and official capacities.
8. At all times relevant herein, the individual Defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.
9. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The Defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.
10. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the Defendant, and/or Defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.
11. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

**STATEMENT OF FACTS**

12. On December 9, 2016, at approximately 1:00 a.m., Plaintiff was lawfully present in the vicinity of, 167-02 Baisley Blvd, Jamaica, New York, when the Defendant police officers unlawfully stopped, questioned, frisked, and falsely arrested Plaintiff without probable cause or legal justification.
13. At no time relevant herein did Plaintiff commit a crime or violate the law in any way, nor did the police officer have an objective reason to accuse Plaintiff of committing a crime or violating the law in any way.
14. At no point did Defendants recover any drugs, weapons, or other illegal contraband from Plaintiff or from a location that was in Plaintiff's possession, custody or control.
15. Nevertheless, Plaintiff was unlawfully arrested and handcuffed by Defendant officers without legal justification or probable cause.
16. Defendant police officers transported Plaintiff to the 113th Precinct against his will, where the Plaintiff was unlawfully photographed, fingerprinted and detained in a holding cell.
17. Plaintiff was then transported from the 113th Precinct to Central Booking.
18. The Defendant police officers provided the District Attorney's Office with the false, misleading and/or incomplete information that Plaintiff committed a crime.
19. Specifically, the Defendant police officers falsely stated to the District Attorney's Office that Plaintiff Cory D. Nelson was Obstructing Governmental Administration among other charges.
20. On December 9, 2016, Plaintiff Cory D. Nelson was arraigned in Queens County Criminal Court, charged with crimes that the Defendant officers had no basis to alleged that he committed and was incarcerated for 46 days at Rikers Correctional Center.
21. Thereafter, in November, 2018, all charges against Plaintiff Cory D. Nelson were dismissed.
22. Some of the police officer Defendants observed the violation of Plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably searching, seizing, assaulting, battering, using excessive force, falsely arresting and imprisoning, and denying Plaintiff the right to due process and a fair trial.



23. The unlawful, search, seizure, assault, battery, use of excessive force, false arrest and imprisonment, and denial of Plaintiff's right to a fair trial by the individually named Defendants caused Plaintiff to sustain physical, psychological and emotional trauma.

### **FIRST CAUSE OF ACTION**

#### **Violation of Plaintiff's Fourth and Fourteenth Amendment Rights**

24. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 23 with the same force and effect as if more fully set forth at length herein.
25. The individually named police officer Defendants while acting in concert and within the scope of their authority, caused Plaintiff to be seized, unlawfully searched, falsely arrested, and falsely imprisoned, and maliciously prosecuted without reasonable suspicion and/or probable cause, in violation of Plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.
26. As a result of the aforementioned conduct of Defendants, Plaintiff sustained injuries, including but not limited to physical, emotional, psychological and economic injuries.

### **SECOND CAUSE OF ACTION**

#### **False Arrest and False Imprisonment**

27. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 26 with the same force and effect as if more fully set forth at length herein.
28. The acts and conduct of the Defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine Plaintiff and, in fact, confined Plaintiff, and Plaintiff was conscious of the confinement. In addition, Plaintiff did not consent to the confinement and the confinement was not otherwise privileged.
29. As a direct and proximate result of such acts, Defendants deprived Plaintiff of his rights under the laws of the State of New York and the United States Constitution.
30. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

31. The City, as the employer of the officer Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
32. As a result of the aforementioned conduct of Defendants, Plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

### **THIRD CAUSE OF ACTION**

#### **Unlawful Stop, Question, and Frisk**

33. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 32 with the same force and effect as if more fully set forth at length herein.
34. The illegal approach, pursuit, stop, questioning and frisk employed by Defendants herein terminated Plaintiff's freedom of movement through means intentionally applied.
35. The conduct of Defendants in stopping, frisking, and searching Plaintiff was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.
36. As a direct and proximate result of such acts, Defendants deprived Plaintiff of his rights under the laws of the State of New York.
37. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
38. The City, as the employer of the officer Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
39. As a result of the aforementioned conduct of Defendants, Plaintiff sustained injuries, including but not limited to physical emotional and psychological injuries.

### **FOURTH CAUSE OF ACTION**

#### **Unlawful Search**

40. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 39 with the same force and effect as if more fully set forth at length herein.

41. The illegal approach, pursuit, stop and search employed by Defendants herein terminated Plaintiff's freedom of movement through means intentionally applied.
42. Defendants lacked probable cause to search Plaintiff.
43. As a direct and proximate result of such acts, Defendants deprived Plaintiff of his rights under the laws of the State of New York.
44. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
45. The City, as the employer of the officer Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
46. As a result of the aforementioned conduct of Defendants, Plaintiff sustained injuries, including but not limited to physical emotional and psychological injuries.

### **FIFTH CAUSE OF ACTION**

#### **Violation of Plaintiff's Fifth and Fourteenth Amendment Rights** **Denial of Right to Fair Trial/Due Process**

47. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 46 with the same force and effect as if more fully set forth at length herein.
48. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Queens County District Attorney's Office.
49. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Queens County District Attorney's Office.
50. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Queens County District Attorney's Office.
51. In withholding/creating false evidence against Plaintiff, and in providing/withholding information with respect thereto, Defendants violated Plaintiff's constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

52. As a result of the foregoing, Plaintiff, sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.
53. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
54. The City, as the employer of the officer Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
55. As a result of the aforementioned conduct of Defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

### **SIXTH CAUSE OF ACTION**

#### **Negligent Infliction of Emotional Distress**

56. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 84 with the same force and effect as if more fully set forth at length herein.
57. By the actions described herein, Defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to Plaintiff.
58. The acts and conduct of the Defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed Plaintiff by the laws and Constitution of the State of New York.
59. As a direct and proximate result of such acts, Defendants deprived Plaintiff of his rights under the laws of the State of New York.
60. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
61. The City, as the employer of the officer Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.



62. As a result of the aforementioned conduct of Defendants, Plaintiff sustained permanent physical injuries, including but not limited to physical emotional and psychological injuries.

### **SEVENTH CAUSE OF ACTION**

#### **Negligent Hiring, Retention, Training and Supervision**

63. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 91 with the same force and effect as if more fully set forth at length herein.
64. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise Defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.
65. As a result of the aforementioned conduct of Defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

### **EIGHTH CAUSE OF ACTION**

#### **Failure to Intervene**

66. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 100 with the same force and effect as if more fully set forth at length herein.
67. Defendants that did not physically touch Plaintiff, but were present when other officers violated Plaintiff's Constitutional Rights, had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.
68. Defendants failed to intervene to prevent the unlawful conduct described herein.
69. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.
70. As a direct and proximate result of such acts, Defendants deprived Plaintiff of his rights under the laws of the State of New York.

71. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
72. The City, as the employer of the officer Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
73. As a result of the aforementioned conduct of Defendants, Plaintiff sustained injuries, including but not limited to physical emotional and psychological injuries.

### **JURY DEMAND**

74. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

### **PRAYER FOR RELIEF**

**WHEREFORE**, Plaintiff Cory D. Nelson demands judgment against Defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That Plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: Brooklyn, New York  
December 11, 2019

Yours, etc.



BROWN & CHESSA LLP  
MICHAEL CHESSA, ESQ.  
Attorney for Plaintiff  
26 Court Street, Suite 1406  
Brooklyn, New York 11242  
(718)-596-0025

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007  
POLICE OFFICER OSWALDO RIVERA, TAX REG No. 946168, 113th  
Precinct, 167-02 Baisley Blvd, Jamaica, NY 11434

ATTORNEY'S VERIFICATION

**MICHAEL CHESSA**, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **BROWN & CHESSA LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not the Plaintiff's is because the Plaintiff does not reside in the county wherein I maintain my office.

DATED: Brooklyn, New York  
December 11, 2019

  
\_\_\_\_\_  
MICHAEL CHESSA

Index Number:

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF QUEENS

---

CORY NELSON,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER OSWALDO RIVERA, TAX REG.  
NO. 946168 and POLICE OFFICERS JOHN AND JANE DOES NUMBERS 1-10,

Defendants.

---

**SUMMONS AND VERIFIED COMPLAINT**

---

BROWN & CHESSA LLP  
26 Court Street, Suite 1406  
Brooklyn, New York 11242  
718-596-0025 phone  
718-228-7292 fax

---